



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles Bloom, AICP, Planning and Development Director
Subject: A Text Amendment amending the Unified Development Code of the City of Cheyenne, Wyoming, to Table 5-1: Zoning District Uses in UDC Section 5.1.4, Districts and Uses, amending the permissibility of various uses.
Date: February 14, 2022

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral February 14, 2022
- Public Services Committee February 23, 2022
- Second Reading consideration February 28, 2022
- Public Services Committee March 8, 2022
- Third and Final Reading consideration March 14, 2022

Planning Commission Recommendation:

The Planning Commission heard this item at their February 7, 2022, meeting and by **unanimous** vote, found that the item met the review criteria for approval and recommended the Governing Body approve the text amendment.

The Planning Commission Staff report is attached. The use table attached to the staff report has been removed since it is incorporated as Attachment A of the Ordinance under consideration.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

Approved as to
form only:

Stephanie Boster

Date: 1/31/2022

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE UNIFIED DEVELOPMENT CODE (UDC) OF THE CITY OF CHEYENNE, WYOMING, TO TABLE 5-1: ZONING DISTRICT USES IN UDC SECTION 5.1.4, DISTRICTS AND USES, AMENDING THE PERMISSIBILITY OF VARIOUS USES."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the UDC.

Section 2. That the intent of this text amendment is to amend the permissibility of uses allowed within the City's zone districts.

Section 3. That on February 26, 2022, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 4. That Table 5-1: Zoning District Uses in UDC Section 5.1.4, Districts and Uses is amended as shown in Attachment A, consisting of three (3) pages, which is attached hereto and incorporated herein.

Section 5. The aforementioned sections of the UDC are hereby amended as set out within this ordinance and sections currently existing within the UDC not set out within this ordinance remain unchanged.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: February 14, 2022

SECOND READING: February 28, 2022

THIRD AND FINAL READING: March 14, 2022

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TABLE 5-1: ZONING DISTRICT USES

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																								
Residential Uses																								
Detached Dwelling	P	P	P	P	P	P	P	P	P			P				P	P			P				
Semi-attached Dwelling ("Duplex")				P	P	P	P	P	P			P				P	P			P				
Attached Dwelling ("Townhouse")					P	P		P	P			P				P	P			P				
Cottage Lots				C	C	C	C	P	P			P				P	P			P				
Group Housing				C	C	C	C	C	C	C	C	C	C	C		C	C	C		P				
Dormitories					C	A						P				P	P			P				
Multi-dwelling Building ("Apartment")				C	NC P		NC P	P		C						NC P	P	P		P				
Live/Work				C	P		C	A	P	P	P					P	P	P		P				
Mixed-use Dwelling										P	P	P				P	P	P		P				
Accessory Dwelling	A	A	A	A	A	A	A	A	A			A				A	A			P				
Urban Loft Building									C	P	C	C				C	P			P				
Manufactured housing parks		C		C	C	C														P				
Civic Uses																								
Neighborhood Assembly (<350 maximum occupancy)	C	C	C	C	C	C	A	A	A	A	A	P	C		C	A	A	A		P				
Community Assembly (350 - 1000 maximum occupancy)										A	A	P	C		C	A	A	A		P				
Cemeteries	A									A	A	P	C		C	A	A	A		P				
Primary and secondary schools	C	C	C	C	C	C	C	C	C	A	A	P			P	A	A	A		P				
Educational facilities											P	P			P		A	A		P				
Community Athletic Field				C	C	C	C	C	C	A	A				P	A	A	A		P				
Developed Athletic Field or Stadium											C		C		C		C	C		P				
Service Uses																								
Service Business - Limited										P	P	P				A	P	P		P				
Service Business - General										C	P	P				C	C			P				
Assisted Living / Nursing Home	C	C	C	C	C	A	C	C	C	C	C				P	P	P	P		P				
Animal Care - Kennel	P	C									P		P							P				
Animal Care - Hospital / Clinic	C	C								C	P	C					C			P				
Child Care, In Home - Minor	P	P	P	P	P	P	P	P	P	P	P	P				P	P	P		P				
Child Care, In Home - Major	A	A	A	A	A	A	A	A	A	P	P	P				A	P	P		P				
Child Care, Center - Minor	A	C	A							P	P	P				C	P	P		P				
Child Care, Center - Major	C	C	C							P	P	P					P	P		P				
Emergency Shelter											P		C											
Entertainment, Indoor Recreation Facility				C	C	C	C	C	C	C	P	P	P		A	C	P	P		P				

Planned District - uses subject to a development plan

Federal Property - No City authority over uses

Overlay District - uses subject to base zoning district

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P = Use permitted by right
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▼ CATEGORY OF USES / SPECIFIC USES																								
Services Uses (cont.)																								
Entertainment, Outdoor Recreation Facility	C	C	C	C	C	C	C	C	C	C	C	A	C	C	A	C	C	C		P				
Entertainment, Venue (1000+ maximum occupancy)	C	C	C								A	A	C		A		C	C		P				
Entertainment, Amusement, Recreation—Other	C	C	C								C	C	C	C	C		C	C		P				
Lodging, Bed and Breakfast	P	A	A	C	C	C	C	A	P							P	P	P		P				
Lodging, Hotel / Motel											P	P					P	P		P				
Medical Care, Clinic <u>and Office</u>											P	P	P			C	P	P		P				
Medical Care, Office											P	P	P				P	P		P				
Medical Care, Hospital															P			P		P				
Mini Storage					C	C					P	C	P	P		C	C	P						
Storage, Yard													C	P						P				
Employment Uses																				P				
Home occupations	P	P	P	P	P	P	P	P	P	P	P	P	P	P		P	P	P		P				
Office – Limited (<3,500)					C	A		C	A	P	P	P	P	P		P	P	P		P				
Office – general (3,500 – 20K)						C				C	P	P	P	P		A	P	P		P				
Office – Major Office Complex (>20K)											P	P	P	P			P	P		P				
Commercial Uses																								
Convenience Retail / Corner Store (<2k)											P	P	P	P		A	P	P		P				
Neighborhood Retail (2K - 5K)											P	P	P	P		A	P	P		P				
General Retail (5K - 25K)											P	P	P				P	A		P				
Large-scale Retail (25K - 100K)											P	P	P				P	C		P				
Warehouse Retail (> 100K)											P	P	P				P			P				
Grocery Store <45K											P	P	P	P			P	P		P				
Supermarket > 45K											P	P	P				P	C		P				
Outdoor Sales, Limited											A	P	A			A	A	A		P				
Outdoor Sales, Seasonal											C	A	C			C	C	C		P				
Outdoor Sales, Event or Display Area											C	A	C			C	C	C		P				
Outdoor Sales												C		C	C		C			P				
Bars and liquor stores											C	C	P		A		C	C	P	P				
Automobile Service Repair											C	P	C	P	P		C	C		P				
Automobile Service Station - Limited											C	P	C	P	P		C	C	P	P				
Automobile Service Station - General												P	C	P	P			C		P				
Automobile Service Station – Large-scale												C		C	P					P				

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▼ CATEGORY OF USES / SPECIFIC USES																								
Commercial Uses (cont.)																								
Food Service – Limited (under 2K)										P	P	P				P	P	P	P	P				
Food Service – general (2K – 4K)										C	P	P					P	P	P	P				
Food Service – Large-scale (over 4k)											P	P					P	P		P				
Industrial Uses																								
Limited Industrial										A	A	P	P	P	P	A	P	P		P				
Moderate Industrial												C	P	P			C	P		P				
General Industrial													C	P						C				
Industrial														C						C				
Limited Outdoor Storage													P	P	C			A		C				
Outdoor Storage													C	P				C		C				
Impoundment Yards													P	P			C	C		C				
Salvage yards													C	C						C				
Junk yards														C						C				
Pet crematory													E							E				
Air cargo terminals																			P	C				
Aircraft sales, repair, service, storage and relating uses																			P	C				
Railroad yards and maintenance buildings													P	P						C				
Public Service Uses																								
Commercial and Public Parking Facility												P			P		P	P		P				
Government Facility										P	P	P	P	P	P	P	P	P	P	P				
Military																				P	P			
Recycling Services											C		P	P			C	C		P				
Transportation facilities											C		P	P	P					P	P			
Utility Stations	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P			
Agriculture Uses																								
General Agriculture	P																			P	P			
Limited Agriculture	P	P																		P	P			
Agricultural equipment or product sales	C																							
Commercial stables, arenas, and show barns	C	C																						
Nurseries, landscaping	P	E	P									C	P	P			C							
Work Camps		C																						

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Semi-attached Dwelling ("Duplex")				P	P	P	P	P	P			P				P	P			P				
Attached Dwelling ("Townhouse")					P	P		P	P			P				P	P			P				
Cottage Lots				C	C	C	C	P	P			P				P	P			P				
Group Housing				C	C	C	C	C	C	C	C	C	C	C		C	C	C		P				
Dormitories					C	A						P				P	P			P				
Multi-dwelling Building ("Apartment")					C	P		P/C	P		C					P/C	P	P		P				
Live/Work					C	P		C	A	P	P	P				P	P	P		P				
Mixed-use Dwelling										P	P	P				P	P	P		P				
Accessory Dwelling	A	A	A	A	A	A	A	A	A			A				A	A			P				
Urban Loft Building									C	P	C	C				C	P			P				
Manufactured housing parks		C		C	C	C														P				
Civic Uses																								
Neighborhood Assembly (<350 maximum occupancy)	C	C	C	C	C	C	A	A	A	A	A	P	C		C	A	A	A		P				
Community Assembly (350 - 1000 maximum occupancy)										A	A	P	C		C	A	A	A		P				
Cemeteries	A									A	A	P	C		C	A	A	A		P				
Primary and secondary schools	C	C	C	C	C	C	C	C	C	A	A	P			P	A	A	A		P				
Educational facilities											P	P			P		A	A		P				
Community Athletic Field				C	C	C	C	C	C	A	A				P	A	A	A		P				
Developed Athletic Field or Stadium											C		C		C		C	C		P				
Service Uses																								
Service Business - Limited										P	P	P				A	P	P		P				
Service Business - General										C	P	P				C	C			P				
Assisted Living / Nursing Home	C	C	C	C	C	A	C	C	C	C	C				P	P	P	P		P				
Animal Care - Kennel	P	C									P		P							P				
Animal Care - Hospital / Clinic	C	C								C	P	C					C			P				
Child Care, In Home - Minor	P	P	P	P	P	P	P	P	P	P	P	P				P	P	P		P				
Child Care, In Home - Major	A	A	A	A	A	A	A	A	A	P	P	P				A	P	P		P				
Child Care, Center - Minor	A	C	A							P	P	P				C	P	P		P				
Child Care, Center - Major	C	C	C							P	P	P					P	P		P				
Emergency Shelter											P		C											
Entertainment, Indoor Recreation Facility				C	C	C	C	C	C	C	P	P	P		A	C	P	P		P				

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Entertainment, Venue (1000+ maximum occupancy)	C	C	C								A	A	C		A		C	C		P				
Entertainment, Amusement, Recreation—Other	C	C	C								C	C	C	C	C		C	C		P				
Lodging, Bed and Breakfast	P	A	A	C	C	C	C	A	P							P	P	P		P				
Lodging, Hotel / Motel											P	P					P	P		P				
Medical Care, Clinic and Office										P	P	P				<u>C</u>	P	P		P				
Medical Care, Office										P	P	P					P	P		P				
Medical Care, Hospital															P			P		P				
Mini Storage					C	C					P	C	P	P		C	C	P						
Storage, Yard													C	P						P				
Employment Uses																				P				
Home occupations	P	P	P	P	P	P	P	P	P	P	P	P	P	P		P	P	P		P				
Office – Limited (<3,500)					C	A		C	A	P	P	P	P	P		P	P	P		P				
Office – general (3,500 – 20K)						C				C	P	P	P	P		A	P	P		P				
Office – Major Office Complex (>20K)											P	P	P	P			P	P		P				
Commercial Uses																								
Convenience Retail / Corner Store (<2k)										P	P	P	P			A	P	P		P				
Neighborhood Retail (2K - 5K)										P	P	P	P			A	P	P		P				
General Retail (5K - 25K)											P	P	P				P	A		P				
Large-scale Retail (25K - 100K)											P	P	P				P	C		P				
Warehouse Retail (> 100K)											P	P	P				P			P				
Grocery Store <45K										P	P	P	P				P	P		P				
Supermarket > 45K											P	P	P				P	C		P				
Outdoor Sales, Limited										A	P	A				A	A	A		P				
Outdoor Sales, Seasonal										C	A	C				C	C	C		P				
Outdoor Sales, Event or Display Area										C	A	C				C	C	C		P				
Outdoor Sales											C		C	C			C			P				
Bars and liquor stores										C	C	P			A		C	C	P	P				
Automobile Service Repair										C	P	C	P	P			C	C		P				
Automobile Service Station - Limited										C	P	C	P	P			C	C	P	P				
Automobile Service Station - General											P	C	P	P				C		P				
Automobile Service Station – Large-scale											C		C	P						P				

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Food Service – general (2K – 4K)										C	P	P					P	P	P	P				
Food Service – Large-scale (over 4k)											P	P					P	P		P				
Industrial Uses																								
Limited Industrial										A	A	P	P	P	P	A	P	P		P				
Moderate Industrial												C	P	P			C	P		P				
General Industrial													C	P						C				
Industrial														C						C				
Limited Outdoor Storage													P	P	C			A		C				
Outdoor Storage													C	P				C		C				
Impoundment Yards													P	P			C	C		C				
Salvage yards													C	C						C				
Junk yards														C						C				
Pet crematory													€							€				
Air cargo terminals																			P	C				
Aircraft sales, repair, service, storage and relating uses																			P	C				
Railroad yards and maintenance buildings													P	P						C				
Public Service Uses																								
Commercial and Public Parking Facility												P			P		P	P		P				
Government Facility										P	P	P	P	P	P	P	P	P	P	P				
Military																			P	P				
Recycling Services											C		P	P			C	C		P				
Transportation facilities											C		P	P	P				P	P				
Utility Stations	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P				
Agriculture Uses																								
General Agriculture	P																		P	P				
Limited Agriculture	P	P																	P	P				
Agricultural equipment or product sales	C																			P				
Commercial stables, arenas, and show barns	C	C																		P				
Nurseries, landscaping	P	€ P									C		P	P			C			P				
Work Camps		C																		P				

Planned District - uses subject to a development plan
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 Overlay District - uses subject to base zoning district
 Overlay District - uses subject to base zoning district



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

PLANNING COMMISSION

FEBRUARY 7, 2022

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code of the City of Cheyenne, Wyoming, to Table 5-1: Zoning District Uses in UDC Section 5.1.4, Districts and Uses, amending the permissibility of various uses.

CASE NUMBER: PLN-22-00001

PREPARED BY: Charles W. Bloom, AICP, Planning and Development Director

RECOMMENDED MOTION:

Move to recommend the Governing Body approve text amendments to the Unified Development Code to Table 5-1: Zoning District Uses in UDC Section 5.1.4, Districts and Uses, amending the permissibility of various uses, as outlined in this staff report, noting the request meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of Plan Cheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant, and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The intent of this amendment is to modify the permissibility of specific uses in the UDC's Use Table, Table 5-1, as well as delete repetitive uses. Staff continues to evaluate the UDC while using it daily and recognize that more complex revisions in need of community input will be made in the future.

DISCUSSION:

Over recent months, it has come to the attention of staff that several of the defined terms of the UDC were repetitive, unnecessary, and posed barriers to certain uses. Collaboratively, staff identified needed changes for the following uses: "Multi-dwelling Building ("Apartment")", "Live/Work", "Mixed-use Dwelling", "Urban Loft Building", "Medical Care, Clinic", "Medical Care, Office", "Crematories", "Railroad yards and maintenance buildings", and "Nurseries, landscaping".

Staff has attached a copy of the Use Table which shows all proposed additions in red strikeout and additions as red underline. Items marked with a “P” are permitted by right, an “A” require administrative approval by the Director, and a “C” require conditional use approval by the Board of Adjustment. No uses have been made more restrictive with this amendment.

Summarized below are highlights of each use table item proposed for modification.

- Multi-dwelling Building (“Apartment”)

This would expand the use permissibility to allow it as a permitted use in the HR (High Density Residential) and NR-2 (Neighborhood Residential – Medium Density) zone districts. The intent behind this is to provide clarity that the specific use does not require conditional use approval; simply, one of the allowed lot types permitted require conditional use approval.

This would expand the use permissibility to allow it as a conditional use in the CB (Community Business) zone district, allowing for introduction of multifamily development in areas commonly developed with regional retailers. As a conditional use, the Board of Adjustment would have to approve proposed projects to ensure multifamily development is appropriate for the specific location and that the development does not replace needed retail spaces. The use could complement existing retail and provide employee housing in CB zone districts.

- Live/Work

This would expand the use permissibility to allow it as a permitted use in the CB zone district, allowing for administrative introduction of a low-intensity residential use in commercial areas. Ultimately, this change would create the opportunity for businesses to incorporate a single residential unit in an individual building, provided it supports the commercial business within the building.

- Mixed-use Dwelling

This would expand the use permissibility to allow it as a permitted use in the CB zone district. Mixed-use buildings may be either small- or large-scale and are designed typically designed with ground floor retail or office. This change would allow for introduction of mixed-use multifamily development in the CB zone district and encourage vertical mixed-use. The use could complement existing retail and provide employee housing in CB zone districts.

- Urban Loft Building

This would expand the use permissibility to allow it as a conditional use in the CB zone district. Urban Loft Buildings are a residential use in a building designed for more than two principal dwelling units in an urban context. As a conditional use, the Board of Adjustment would have to approve proposed projects to ensure multifamily development is appropriate for the specific location and that the development does not replace needed retail spaces. The use could complement existing retail, provide employee housing in CB zone districts, and provide for urban-style infill projects in areas primarily developed in a suburban fashion.

- Medical Care, Clinic and Medical Care, Office

This amendment would combine the two uses into one use within the use table. They are essentially the same use, oftentimes are co-located, and are permissible in the same zone districts. The amendment would also allow these facilities as conditional uses in the MUR (Mixed-use Residential) zone districts to recognize existing centers that are classified as non-conforming uses. Prior to UDC adoption in 2012, these centers were permitted in MUR districts.

- Pet crematory

This amendment would delete this use from the use table. This is adequately covered under the “cemeteries” use (pet) and the “Service Business (Limited and General)” uses. Staff is not certain why this use was initially singled out and limited to LI (Light Industrial) zone districts as a conditional use with the adoption of the UDC but believes deletion of this from the use table is acceptable. Presently, no businesses offering this service are located within an LI or SS (Support Services) zone district.

- Railroad yards and maintenance buildings

This would expand the use permissibility to allow it as a permitted use in the HI (Heavy Industrial) zone district. Presently, this use is only allowed in the LI zone district. Allowing it in the HI zone district is logical, reflects existing conditions, and removes potential obstacles to future development.

- Nurseries, landscaping

This amendment would increase the amount of zone districts where landscape nurseries can be located. Presently, this use is only permissible as a conditional use in the AR (Agricultural Residential) zone district and permitted in the SS District. This amendment would expand the allowance to allow them as principally permitted uses in the AG (Agriculture), AR, LI, and HI zone districts. The use would be permissible as a conditional use in the CB and MUB zone districts.

PROPOSED AMENDMENT:

The proposed amendments are reflected in Attachment A which is comprised of 3-pages.

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

“The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan.”

This proposed text amendment is consistent with several foundations and principles and policies within PlanCheyenne. Specifically, the proposed amendment addresses the following policies and principles:

Foundation 1 – Growing as a Community of Choice

Synopsis: Cheyenne is a successful and livable community that provides excellent choices in housing and jobs. This Plan focuses on maintaining this high quality of life as our community grows and attracting new jobs so we can remain competitive in the region. The community will plan for and implement growth that provides opportunities for people of all generations, retains traits that have made it livable, and attract businesses and economic development. Modification of the use table, as proposed, provides support for existing businesses and clarifies where specific uses are permissible.

Policy 1.4.d: Infill and Revitalization Incentives

Synopsis: This policy directs the City to explore the use of incentives to encourage infill and revitalization activities in underutilized areas or areas that are simply in need of reinvestment. Increasing the flexibility in development regulations by adding uses to specific districts or expanding the area in which specific uses can locate, accomplishes this policy.

Foundation 7 – Developing in a Fiscally Responsible Way

Synopsis: The Cheyenne Area excels in providing services in a fiscally responsible way... The Plan aims to guide future growth to promote efficient use of public and private resources and to provide adequate public facilities to sustain our quality of life and to encourage continued growth. This includes revisiting permissible uses to adapt to changing trends and known deficiencies and to introduce housing options near employment opportunities.

Principle 7.5: Funding of Quality-of-Life Services

Synopsis: Our community will consider how to fund quality of life services in an effective and efficient manner.

The Design Principles for New Development

Synopsis: This section of PlanCheyenne's Community Plan provides guidance to ensure that new development is consistent with the community's goals. These principles were originally established as part of the 2006 PlanCheyenne process to raise the bar for design in new development, help the Cheyenne Area retain its authenticity, and protect and enhance community character. To support their implementation, many of these principles were codified as part of the initial UDC. The plan further states that as the Cheyenne area continues to grow, the principles and supporting regulations should be applied consistently to new development to enhance community character and livability; should demonstrate the level of commitment and quality that the community desires; and should provide the predictability needed for property owners, businesses, and new residents to feel confident in their decision to invest in the community. Updates to the UDC are necessary to continue carrying out this vision as the community grows over time.

The Design Principles to Guide New Development table supports multifamily development in the Community Business land use category and the other proposed changes to the use table are not in conflict, thus meeting this criterion.

As shown above, the proposed amendment meets several of the Foundation, Policy, and Principles of PlanCheyenne and satisfies this review criterion. The proposed amendment is in accordance with the general goals and consistent with PlanCheyenne principles and policy.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601 (a): The governing body of any city or town, by ordinance, may:

- (i) Regulate and restrict the:
 - (A) Height, number of stories and size of buildings and other structures;
 - (B) Percentage of lot that may be occupied;
 - (C) Size of yards, courts and other open spaces;
 - (D) Density of population; and
 - (E) Location and use of buildings, structures and land for trade, industry, residence, or other purposes.

Assessment: This amendment proposes modifying the UDC for the purposes of updating lot coverage area and open space; thus, fulfilling requirements of this statute.

WYO 15-1-601(d): All regulations shall be made:

- (i) In accordance with a comprehensive plan and designed to:
 - (A) Lessen congestion in the streets;
 - (B) Secure safety from fire, panic and other dangers;
 - (C) Promote health and general welfare;
 - (D) Provide adequate light and air;
 - (E) Prevent the overcrowding of land;
 - (F) Avoid undue concentration of population; and
 - (G) Facilitate adequate provisions for transportation, water, sewerage, schools, parks and other public requirements.
- (ii) With reasonable consideration, among other things, of the character of the district and its peculiar suitability for particular uses;
- (iii) With a view to conserving the value of buildings and encouraging the most appropriate use of land throughout the city or town; and
- (iv) With consideration given to the historic integrity of certain neighborhoods or districts and a view to preserving, rehabilitating and maintaining historic properties and encouraging compatible uses within the neighborhoods or districts, but no regulation made to carry out the purposes of this paragraph is valid to the extent it constitutes an unconstitutional taking without compensation.

Assessment: This amendment proposes modifying the UDC for the purposes of updating the use table as to the permissibility of specific uses. Regulations of this nature are allowable under state statute and may be modified by the Governing Body.

WYO 15-1-602 (a): The governing body shall specify how regulations, restrictions and the district boundaries are to be determined, established, enforced, amended, supplemented or otherwise changed.

Assessment: State statute states that the governing body shall specify how regulations regarding zoning are established and enforced. The Governing Body possesses the authority to amend regulations and therefore, can amend the UDC to reflect this text amendment.

As listed above, the proposed amendment satisfies this review criterion.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment will not adversely impact the general health, safety and public welfare of Cheyenne and satisfies this review criterion.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d. Amending the UDC in this fashion provides more flexibility with specific uses. The amendments accomplish several policies within PlanCheyenne and are enabled by Wyoming State Zoning statutes. Lastly, updating this will not jeopardize the overall health, safety, and welfare of the community.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code to the Unified Development Code to Table 5-1: Zoning District Uses in UDC Section 5.1.4, Districts and Uses, amending the permissibility of various uses as outlined in this staff report, noting the request meets the review criteria of UDC 2.4.1.d.

ATTACHMENTS:

1. ~~Use Table With Proposed Changes~~ REMOVED FROM GOVERNING BODY PACKET, SEE ORDINANCE